

25LBCV01684 25LBCV01684

County: los-angeles

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Case Number: 25LBCV01684 Hearing Date: September 8, 2026 Dept: S27

1. Background

Facts

Plaintiff, Jeff Hamar filed this action against Defendants, Helene Manestar, Matthew Manestar, and The Manestar Family Trust for Violation of RSO, Breach of the Covenant of Quiet Enjoyment, Breach of the Implied Warranty of Habitability, Retaliatory Eviction, Tenant Harassment, Negligence Per Se, Negligent Infliction of Emotional Distress, Intentional Infliction of Emotional Distress, Breach of Oral Lease, Private Nuisance, and Violation of the Unfair Competition Laws.

The crux of Plaintiff's complaint is that he is a disabled individual who resides in Defendants' property, which is located in San Pedro (within the City of Los Angeles). Plaintiff alleges his home has been in substandard condition since 2020, and alleges a variety of negligent and intentional acts taken toward him from 2020 to the present in connection with his tenancy; specific allegations will be detailed below in connection with the analysis.

Plaintiff initiated the action on 6/12/25, and Defendants filed an answer on 9/03/25.

2. Motion

for Judgment on the Pleadings

a.

Request for Judicial Notice

Defendants seek judicial notice of

various documents with their motions.

The RJN is granted.

b.

Discovery Responses

Defendants submitted Plaintiff's

discovery responses with their moving papers.

Defendants did not submit the discovery propounded, so the Court cannot meaningfully evaluate the responses. The

Court has considered the responses to the extent it is possible to do so, but finds most issues relating to the discovery responses present factual issues not appropriate for determination on a pleading challenge, as will be detailed below.

c.

Statute of Limitations

Defendants contend the causes of

action for breach of oral contract, negligence per se, IIED, NIED, and RSO Violations are all barred by the applicable statutes of limitations, which range from one year to three years.

Plaintiff's complaint contains

various allegations, in connection with each of the subject causes of action, that fall outside the limitations periods.

The complaint also, however, contains allegations that fall INSIDE the limitations periods. Defendants' points

and authorities appear to concede this much, arguing, for example, "to the extent Plaintiff's NIED claims are based on events alleged to have occurred in 2020-2021, they are time-barred."

This is a motion for judgment on

the pleadings. It does not seek to

excise specific allegations from a cause of action, which would be the proper subject of a motion to strike; a motion for judgment on the pleadings instead

must be based on the premise that the ENTIRE cause of action is barred. Because Defendants appear to concede that SOME of the events sued upon occurred within the relevant SOL periods, Defendants' motion for judgment on the pleadings fails.

d. Matthew

Manestar

Matthew Manestar is not alleged to own the subject property. Instead, ¶3 of the complaint alleges that Matthew is Helene's husband, that he is the "historical owner" of the property, and that he, on information and belief, "has held and exercised ownership, management authority, or beneficial interest" in the subject property and has "participated in or ratified decisions" concerning the property.

It is not clear what a "historical owner" of a property is, or how a "historical owner" would have liability for any acts in the complaint. It is also not clear how one who does not own a property can "exercise ownership" over the property. To the extent a "beneficial interest" in the property is alleged, it appears this is likely because Matthew is a beneficiary of the Trust. One does not, however, sue beneficiaries of trusts directly; one sues trustees. This will be discussed further below. It is also not clear how someone who does not otherwise have ownership of the property can ratify decisions made by others – what would be the authority to do so? At most, we are left with the bare allegation that Matthew had "management authority" or "participated in decisions" relating to the property. The Court finds, without more, this is insufficient to allege a claim against Matthew.

The motion on this ground is granted.

Leave to amend is granted if Plaintiff can allege facts showing the relationship between Matthew, in his personal capacity, to the property.

e. Trust

Plaintiff erroneously sued the Trust. Plaintiff concedes, in opposition to the motion, that Probate Code §18004 requires this proceeding to be against the trustee in the trustee's capacity as the trustee of the trust, and not against the trust itself. The motion for judgment on the pleadings is therefore granted; leave to amend is granted to correct the identity of the trust defendant.

f. NIED

Defendant challenges the NIED cause of action on various grounds. First, it argues NIED is duplicative of negligence.

While this is technically correct, the Court notes that pleading NIED separately is a common practice and that there would be no meaningful purpose in striking the NIED cause of action and requiring Plaintiff to instead plead emotional distress damages in connection with his negligence cause of action.

Defendants also argue Plaintiff is neither a direct victim nor a bystander for purposes of NIED. Defendants rely on *Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 985 to support its position that a plaintiff suing for NIED on a direct victim theory must establish the defendant assumed a duty to the plaintiff in which the emotional condition of the plaintiff is an object. Defendants then conclude that California courts have “not uniformly held that statutory habitability obligations...or the landlord-tenant relationship generally give rise to a duty sufficient to support an independent NIED cause of action.”

Defendants’ argument is unavailing. First, Defendants appear to concede that some California courts HAVE permitted NIED causes of action on these grounds. Second, Defendants do not cite a single case refusing to allow an NIED cause of action premised on habitability obligations and/or the landlord-tenant relationship. Defendants have the burden, on this pleading challenge, to demonstrate the defect in the cause of action. They failed to do so.

Finally, Defendants argue Plaintiff judicially admitted that he did not suffer extreme emotional distress because, in response to discovery, he stated that he has suffered the type of stress, anxiety, fear, loss of sleep, and worry that any reasonable person would experience when living with Defendants’ conduct. Defendant argues that, because this was merely the normal and reasonable emotional reaction experienced by a reasonable person, the distress is not serious. It is unclear how Defendant reaches this conclusion. A reasonable person can suffer extreme emotional distress when faced with a dire situation. The fact that the person did not attend treatment may be worth arguing at the fact-finding stage, but is not relevant at the pleading stage, as many people do not seek treatment for emotional distress for myriad reasons unrelated to not sustaining emotional distress.

g. Civil
Penalties

Defendants argue the claim for civil penalties in the UCL cause of action can only be stated by a public prosecutor. Plaintiff concedes as much in opposition, but correctly notes this does not defeat the cause of action, which is the purpose of a motion for judgment on the pleadings. The motion is denied, but the Court asks Plaintiff to omit the civil penalties claim from the amended complaint in light of his concession in this regard.

3. Motion
to Strike

a. Opposition

On 9/02/26, the Court granted Plaintiff's ex parte application for leave to file untimely opposition papers. Plaintiff filed, however, only an opposition to the above MJP, and no opposition to this motion to strike. The Court is ruling on this motion to strike without the benefit of opposition papers. Defendant filed a reply brief in support of his MJP.

b. Civil
Penalties

Defendant moves to strike the prayer for civil penalties from the UCL cause of action. The motion is granted for the reasons detailed above.

c. Enhanced
Penalties for Misconduct Directed at Disabled Persons

The motion to strike these allegations is moot, as this is merely an alternative request to strike the prayer for civil penalties, which was granted above.

d. Eggshell
Plaintiff

Plaintiff alleges, at ¶10 of his complaint, that he suffered damages during the actionable period of 2024-2025 that were exacerbated by Defendants' longstanding and chronic failure to remedy hazardous conditions at his property, and pursuant to *Garcia v. Myllyla* (2019) 40 Cal.App.5th 990, the jury can consider those prior violations in determining the amount of emotional distress suffered.

In *Garcia*, the court of appeals considered a question similar to the one at issue in this case, and the court of appeals held:

Myllyla argues that a number of the plaintiffs testified that they experienced emotional distress from events that occurred prior to the period covered by the statute of limitations.⁸ However, while Plaintiffs could not recover emotional distress damages directly stemming from events outside the permissible dates, the jury could reasonably consider the effect of such events on Plaintiffs' sensitivity to conditions in the Building during the statutory period. For example, as the trial court observed in denying Myllyla's motion for a new trial, the jury could infer that plaintiff Theresa Ramos's traumatic experience in having a cockroach removed from her ear before the statutory period made her more prone to emotional distress from the presence of cockroaches in the Building during the period for which the jury was permitted to award noneconomic damages.

Defendants' arguments that ¶10 should be stricken are unavailing. ¶10 explains why allegations outside the SOL period are alleged in the remainder of the complaint (which will be discussed below). The fact that Plaintiff "admitted" he did not have any conditions "prior to the incident" is not relevant to the analysis. First, Defendants provided Plaintiff's responses to FROGs, but not the FROGs themselves. The Court therefore cannot determine how "incident" was defined in the FROGs. If "incident" included all of the allegations in the complaint, then it makes no difference that Plaintiff was not suffering from a mental condition prior to the incident. Second, lacking a mental "disability or condition" is not the same as failing to suffer from emotional distress.

The motion to strike ¶10 is denied.

e. Allegations
of Conduct Occurring Outside SOL Period

The Court will allow the allegations of conduct occurring outside the SOL period for the sole purpose of permitting the jury to consider the effect of pre-SOL acts on Plaintiff's emotional condition, as expressly permitted by Garcia, discussed above. The motion to strike is denied.

4. Conclusion

The motions for judgment on the pleadings and to strike are granted in part and denied in part as set forth fully above. Plaintiff must file an amended complaint within twenty days. Defendants must file a responsive pleading within the statutory time thereafter.

The parties are reminded that there is a post-mediation status conference on calendar concurrently with the hearing on the above motions. The Court asks the parties to make arrangements to appear remotely at the hearing.